
JPMORGAN CHASE BANK, N.A. v. MELANIE RIVERA-HOLM
Case No. CL25-04905

Motion for Entry of Judgment

TENTATIVE RULING

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

CHAVEZ v. RIGHT NOW AIR
Case No. CU24-02605

Motion to Compel Production of Unredacted Medical Records

TENTATIVE RULING

Parties to appear.

Defendant’s unopposed motion seeking compliance with the subpoena served on Winters HealthCare Behavioral Health is GRANTED IN PART. Winters Healthcare Behavioral Health is ordered to produce plaintiff’s records from January 2, 2019, (five years prior to the incident) to the present.

It appears that the parties agreed to use a “first look” process and that Winters Healthcare Behavioral Health has actually produced the documents subpoenaed to Plaintiff’s counsel as previously agreed. Defendant contends that Plaintiff’s counsel heavily redacted or omitted pages during this “first look” process such that the materials produced lacked substance and provided a privilege log identifying a right to privacy as

a basis for not producing a wide range of medical records. Since then, Plaintiff's counsel has withdrawn from the case on April 1, 2026.

The order granting attorney's motion to withdraw includes notice to plaintiff of the motion to compel set for May 21, 2026 at 9:01 in Department 8.

By placing his physical and mental conditions at issue, Plaintiff has engaged in a limited waiver of his right to assert a right to privacy, the physician-patient privilege and the psychotherapist-patient privilege regarding discovery of evidence reasonably related to those claims. (Evid. Code, §§ 996, 1016; see also *Britt v. Superior Court* (1978) 20 Cal.3d 844,849; *In re Lifschutz* (1970) 2 Cal.3d 415, 435.) Plaintiff asserts disability discrimination by Defendant, his former employer. Plaintiff does not claim garden-variety emotional distress, but asserts that as a result of his claims against Defendant he has experienced stress, anxiety and depression for which he is seeking treatment.

Defendant is entitled to discovery related to Plaintiff's physical and mental condition and damages claims. However, limiting the scope of discovery from January 2, 2019 to present, is a reasonable limitation to ensure the request is not overbroad and unnecessarily invasive. The court does not find identification or financial numbers used by healthcare to have any extraordinary right to privacy. Notably, the parties continue to have a stipulated protective order in place.

Plaintiff is ordered to produce unredacted documents responsive to this order in 15 calendar days.

Given counsel's withdrawal, the court is concerned that the original of the documents produced may no longer be available or accessible or identifiable to Plaintiff representing himself pro per. To avoid multiple discovery motions and further delay, if this circumstance arises, the court authorizes defense counsel to re-subpoena the records from Winters Healthcare Behavioral Health and to have responsive records produced directly to defense counsel. No further notice to consumer is required and any prior objections are preserved. This order is sufficient to compel the further release.

Plaintiff and/or Winters HealthCare Behavioral Health shall produce all records responsive to the subpoena from defendant RIGHT NOW AIR from January 2, 2019, to the present without redaction.

The court confirms the June 4, 2026 case management conference at 9:00 a.m. in Department 8. Parties may appear in person or via Zoom. Case management conference statements using Judicial Council Form CM-110 shall be filed 15 calendar days prior to the hearing.

The court also confirms the hearing on Plaintiff's demurrer to the answer on June 4, 2026 at 9:00 a.m. Parties are reminded to check the court's tentative ruling system on June 3, 2026 after 2:00 p.m. and to notify the court if oral argument on the tentative ruling is requested.
